



Negligence: Duty of Care

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Tuesday, September 22, 2026

Structure of Negligence

- **Duty of care** – was the defendant under any legal obligation to exercise care re: the plaintiff's interests?
- **Standard of care** – did the defendant's conduct fall below the required standard?
- **Causation** – was the defendant's careless conduct a cause of the plaintiff's loss?
- **Remoteness** – is the connection between the conduct and the injury too remote to warrant recovery?
- **Damage** – negligence is not actionable *per se*
- **Defences** – contributory negligence, voluntary assumption of risk, illegality, inevitable accident
- **Damages** – various 'heads' of damages

Duty of Care

- First step in the negligence analysis
- It has historically acted, and continues to act, as a device to control the 'reach' of negligence
- A huge factor in the finding of whether there is a duty has always been policy
 - Policy = how negligence law interacts with existing relationships, social and political institutions, and the general workings of society in general
- That means the duty analysis has always reflected what is happening in society

History pre- *Donoghue*

- Negligence was restricted to certain relationships, mostly contractual
- In the mid-to-late 19th century, lawyers tried to expand the categories but were largely unsuccessful
- It was very difficult for consumers to sue manufacturers in negligence unless there was a contractual relationship

Winterbottom v Wright (1842)

- What happened?
- What did the plaintiff ask for?
- How did the defendant respond?
- What did the court decide?



History pre- *Donoghue* (continued)

- By the early 20th century, duty of care was confined to a narrow set of categories that reflected certain assumptions:
 - Society valued individual liberty and self-reliance, so liability arose from voluntary agreements between consenting parties
 - Courts had a limited role in shaping the law
 - Courts were reluctant to impose positive obligations on people – so generally no liability for omissions
 - Physical, direct, and tangible injuries more likely to be compensated – harm caused by deeds more likely to be compensated than harm caused by words
- No underlying or unifying principle for application to future cases



**Then a snail changed
everything...**

***Donoghue v Stevenson,*
[1932] AC 562**

Donoghue v Stevenson (1932)

- What happened?
- What stage of the case are we at?
- Why did Mrs Donoghue sue in negligence, and not in contract?
- What were her arguments?
- What was the defence?



Donoghue v Stevenson (1932)

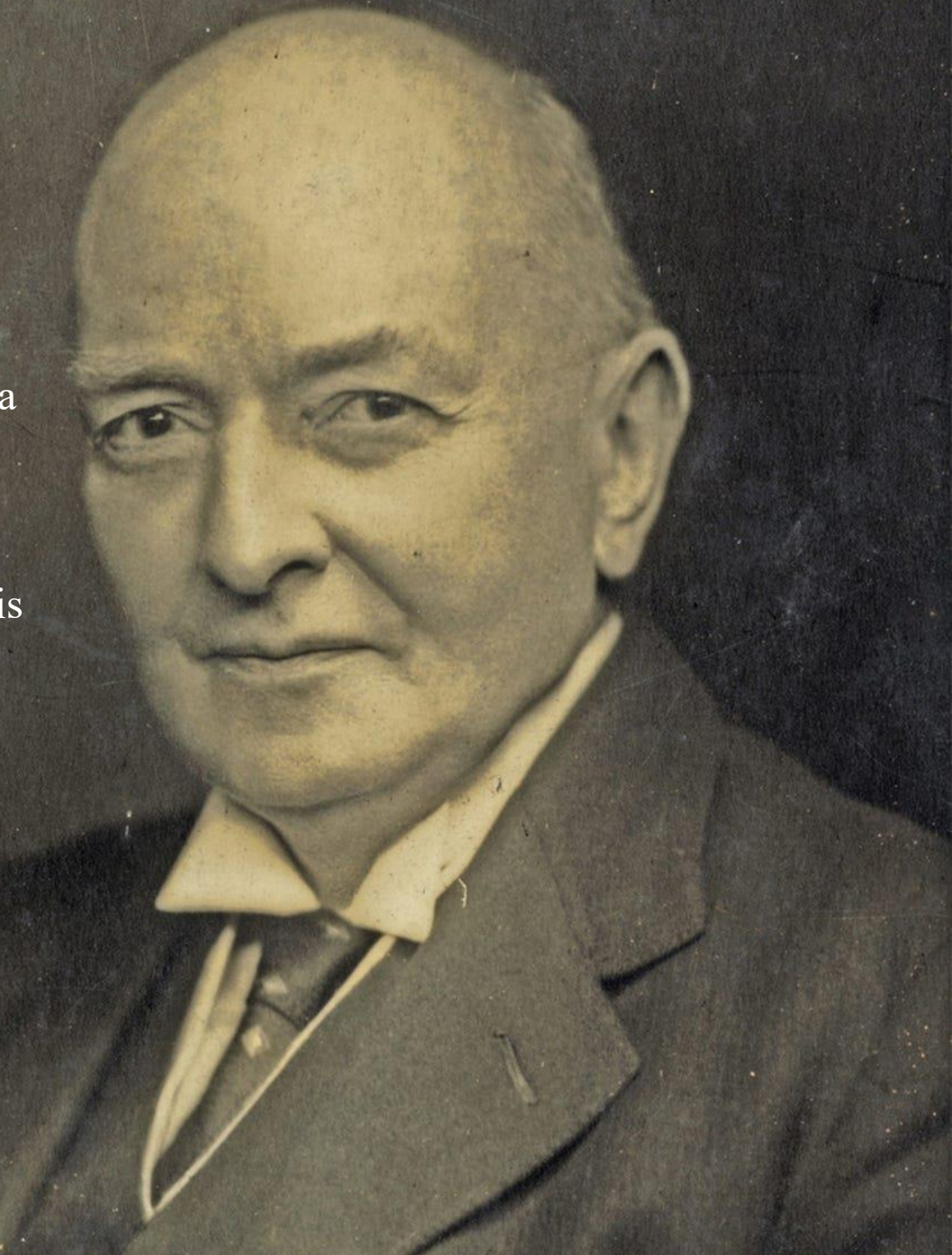
- Dissent (Lord Buckmaster)
- Relied on *Winterbottom v Wright*
- Floodgates argument – extending duty of care to food manufacturers would extend it to all manufacturers: “If one step, why not fifty?”



Lord Atkin (for the majority)

- Noted the “elaborate classification of duties” in case law
- But no general statement of the relationships that gave rise to duty
- Atkin said there must be a general conception, of which the categories are just instances
- The ‘neighbour principle’

The rule that you are to love your neighbour becomes in law, you must not injure your neighbour; and the lawyer's question, Who is my neighbour? receives a restricted reply. You must take reasonable care to avoid acts or omissions which you can reasonably foresee would be likely to injure your neighbour. Who, then, in law, is my neighbour? The answer seems to be – persons who are so closely and directly affected by my act that I ought reasonably to have them in contemplation as being so affected when I am directing my mind to the acts or omissions which are called in question.



Why was *Donoghue* revolutionary?

- Majority held that manufacturers owe a duty of care to the ultimate consumer
- This was not restricted to contractual obligations
- Negligence became a basis for liability to which new categories could always be added (Lord Macmillan)
- Discrete categories replaced by a general conception of relationships which give rise to a duty of care
 - The 'neighbour principle'
 - Why is this general conception potentially much broader than discrete categories?
- Lord Atkin's speech encompassed two crucial ideas in the duty of care: proximity and foreseeability

Evolution Post-*Donoghue*

- Courts initially continued with the 'category' approach – see *Watson v Buckley* (1940)
- It wasn't until the 1960s that appellate courts began to use *Donoghue* to overturn fundamental assumptions
- *Clay v AJ Crump* (1964) - liability imposed despite plaintiff's ability to inspect the wall
- *Hedley Byrne v Heller* (1964) – negligent advice
- *Home Office v Dorset Yacht* (1970) – omissions, third parties, liability of public authorities



Duty of Care and Policy

- Duty of care test is not based solely on foreseeability and proximity
- Because of the gatekeeper role of duty of care, policy is important as well
- For many years post-*Donoghue*, the courts did not acknowledge this
- But then in *Anns v Merton London Borough Council*, the House of Lords made it explicit

Anns v Merton London BC (1978)

- Two-stage analysis of the duty of care
 1. Is there a sufficient relationship of proximity that carelessness on the defendant's part will foreseeably damage the plaintiff?
 2. Are there any policy considerations that should negate a duty of care?
- SCC adopted this test in *Kamloops v Nielsen*, [1984] 2 SCR 2



England ditches *Anns*

- *Caparo v Dickman*, [1990] 2 AC 605 – House of Lords laid out a three-step test
- First two steps are similar to *Anns*
- Third step: Is it fair, just and reasonable that the law should impose a duty?
- How are the Canadian and English tests different?
- What does the court in *Caparo* say about the *Anns* test and policy considerations? (See Weinrib book)

The *Anns* test applied – *Dobson v Dobson*

- We've discussed this case before
- Which part of the *Anns* test did the court (and our discussion) focus on?
- First stage: was there foreseeability/proximity?
- Second stage: policy factors to negate duty?
- Majority's approach
- McLachlin & L'Heureux-Dubé JJ's approach
- Major & Bastarache JJ's approach



SCC turns back the tide – *Cooper v Hobart*

- SCC reformulated the duty of care test
- If a case falls within a recognized category, a duty of care exists
- If it's a novel case, then a modified test applies:
 1. Was the harm that occurred the reasonably foreseeable consequence of the defendant's act? Are there any elements that establish proximity between the parties?
 2. Are there reasons ... that tort liability should not be recognized here?



Novelty

- Following *Cooper v Hobart*, the first question courts ask themselves is – is this a novel case? If not, you get your answer from precedent
- How do you figure out if a case is novel?

Novelty – *Rankin's Garage*, 2018 SCC 19

- What happened?
- How did the majority frame the duty of care?
- How did the dissent frame the duty of care?
- Was the case found to be novel?
- Novelty is more likely in cases involving:
 - Non-physical harms
 - Omissions
 - Acts of third parties
 - Public authority liability



Novelty

- Non-physical harms
- Omissions – liability will be imposed if:
 - D intentionally attracts and invites P to an inherent and obvious risk that D has created or controls
 - Paternalistic relationships of supervision/control (eg parent-child, teacher-student)
 - D exercises a public function or engages in commercial enterprise with responsibilities to the general public
- Acts of third parties – liability will be imposed if:
 - D had control over 3rd party, and 3rd party might injure P if D did not take reasonable care
 - D assumes responsibility for P
- Public authority liability
 - Policy-operational distinction
 - Other considerations

Current test:
Anns/Cooper

- If the case is novel, then go on to apply the two-step *Anns/Cooper* test for a duty of care:
 1. Was the harm reasonably foreseeable and was there proximity between the parties?
 2. Are there policy reasons for not recognizing a duty of care?

Foreseeability – *Palsgraf v Long Island Railway*

- Was it reasonably foreseeable that carelessness on D's part could create (i) a risk of injury, to (ii) P or class to which P belongs?
- Where would a plaintiff not be foreseeable?
- *Palsgraf* – what happened?
 - Majority (Cardozo J)
 - Dissent (Andrews J)
- Which do you agree with?
- Distinction between duty and remoteness

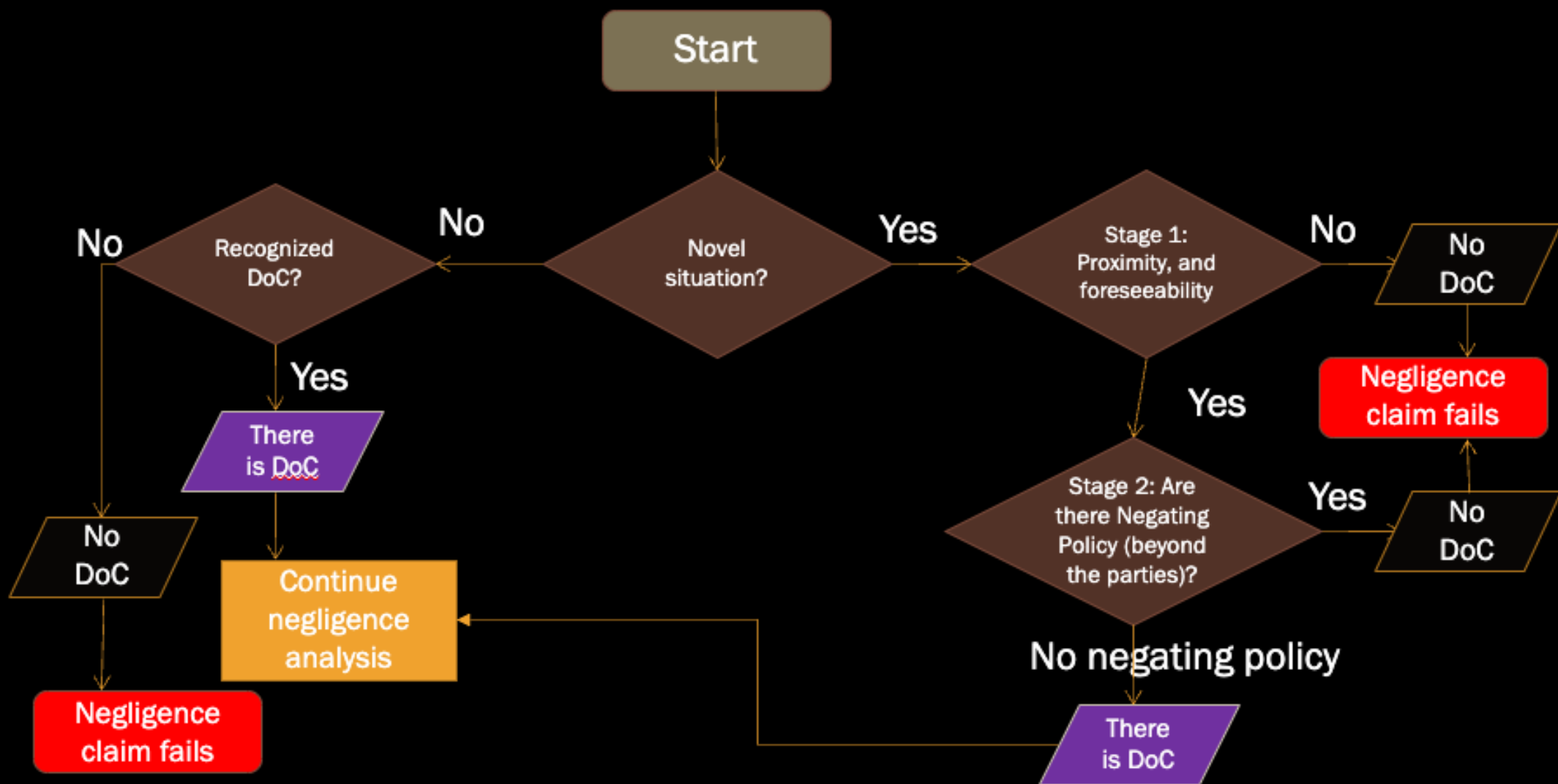


Proximate Relationship

- Court will consider two main factors
- “Closeness and directness” of relationship
 - Physical, social, circumstantial, causal, etc
 - Created by representation, assumption of responsibility, reliance, reasonable expectations
 - Identified through use of categories, but new categories can be introduced
- Policy factors pertaining to the parties
 - Often, cases against public authorities fail at this stage – see *Cooper v Hobart* itself

Residual Policy Factors

- These may negate or limit a duty of care
- Looks not at relationship between parties, but at the impact imposing a DOC would have on society generally
- Courts will consider:
 - Does the law already provide a remedy?
 - Will there be infinite liability to an infinite class?
 - Policy/operational distinction re: public authorities
- Burden here shifts to the defendant



Criticism of the *Anns/Cooper* test

- What are some criticisms of the test?
 - From a moralist perspective?
 - From a critical theory perspective?
- If you had to choose, which approach would you prefer and why?
 - Incremental & based on existing categories
 - Two-step approach (proximity/foreseeability and policy)
 - A combination of the two

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Next class:
Small Groups (Fact Pattern)